

days of the date the application is ready to proceed to hearing						
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* Whether standard has been met or not.

HRTO Service Standards (Decisions)

	2018-19		2017-18		2016-17	
Decisions	Avg no. of days	% of time standard is met	Avg no. of days	% of time standard is met	Avg no. of days	% of time standard is met
Decisions for hearings which take 3 days or less will be issued within 90 days	70	76%	63	81%	81	68%
Decisions for hearings which take longer than 3 days, will be issued within 180 days	275	29%	235	33%	312	17%

* Whether standard has been met or not.

Landlord and Tenant Board

The Landlord and Tenant Board (LTB) resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the [Residential Tenancies Act \(RTA\)](#).

The LTB's authority and jurisdiction are derived from the [Residential Tenancies Act](#).

Operational Highlights

To ensure fairness and equity, in September 2018, the LTB began processing applications according to the date received, regardless of whether the application was dropped off in-person at an LTB office or received by mail or by fax.

In October 2018, a new instructional video, [E-File with the Landlord and Tenant Board: A Video](#) was posted to the LTB website. The step-by-step, animated video clarifies the electronic filing process, especially for first-time users.

The [LTB Rules of Procedure](#) were extensively reformatted with changes that included: allowing the use of a declaration instead of an affidavit, allowing parties to give each other certain documents by email where they both agree and removing the requirement that co-operatives serve applications.

In fall 2018, the LTB created a small team of staff dedicated to managing phone inquiries which resulted in greater efficiency. To provide better service to the public, information about the “best times to call” were also posted on the [website](#).

Landlord and Tenant Board Applications

	2018-19	2017-18	2016-17
Applications received*	82,095	80,791	81,432
Applications resolved**	79,476	78,744	78,783
Open at year-end***	14,726	12,944	13,899

* The totals include non-profit co-operative housing eviction applications.

** The majority of applications - 61% - are resolved at hearing (ordered by hearing contested or uncontested, or ordered by review), through mediation - 13.5% (mediated or ordered by hearing mediated) and through withdrawals - 12%.

*** In a small number of cases, “resolved” applications are re-opened in the case management system (e.g. when the LTB grants a request for review of an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received”, less the “applications resolved”.

Landlord Applications Received by Type

Case Type	Application Description	2018-19	2017-18	2016-17
A1	Determine whether the act applies	126 (0.2%)	96 (0.1%)	104 (0.1%)
A2	Sublet or assignment	378 (0.5%)	332 (0.5%)	264 (0.3%)
A3	Combined application (usually includes an L1)	3,632 (4.9%)	3878 (5.3%)	4,067 (5.6%)
A4	Vary rent reduction amount	173 (0.2%)	220 (0.3%)	134 (0.2%)
L1	Terminate & evict for non-payment of rent	46,043 (62.4%)	47,595 (65.6%)	49,489 (67.6%)
L2	Terminate for other reasons and evict	13,945 (18.9%)	11,404 (15.7%)	9,987 (13.6%)
L3	Termination - tenant gave notice or agreed	1,711 (2.3%)	1,622 (2.2%)	1,439 (2.0%)
L4	Terminate the tenancy - failed settlement	5,571 (7.6%)	5,552 (7.7%)	5,478 (7.5%)
L5	Rent increase above the guideline	717 (1.0%)	559 (0.8%)	575 (0.8%)

L6	Review of provincial work order	4 (0.0%)	5 (0.0%)	3 (0.0%)
L7	Transfer tenant to care home	5 (0.0%)	1 (0.0%)	1 (0.0%)
L8	Tenant changed locks	39 (0.1%)	29 (0.0%)	37 (0.0%)
L9	Application to collect rent	1,394 (1.9%)	1,218 (1.7%)	1,628 (2.2%)
Total		73,738	72,511	73,206

Tenant Applications Received by Type

Case Type	Application Description	2018-19	2017-18	2016-17
A1	Determine whether the act applies	116(1.4%)	91 (1.2%)	49 (0.6%)
A2	Sublet or assignment	66 (0.8%)	57 (0.7%)	55 (0.7%)
A3	Combined application	1,780 (21.3%)	1,798 (23.2%)	1,634 (19.8%)
A4	Vary rent reduction amount	1 (0.0%)	2 (0.0%)	0 (0.0%)
T1	Rent rebate (e.g. illegal rent)	863 (10.3%)	765 (9.9%)	732 (8.9%)
T2	Tenant rights	3,053 (36.5%)	2,832 (36.6%)	3,807 (46.1%)
T3	Rent reduction	148 (1.8%)	71 (0.9%)	68 (0.8%)

T4	Failed rent increase above guideline	1 (0.0%)	3 (0.0%)	6 (0.0%)
T5	Bad faith notice of termination	355 (4.2%)	295 (3.8%)	211 (2.6%)
T6	Maintenance	1,970 (23.6%)	1,818 (23.5%)	1,675 (20.3%)
T7	Suite meters	4 (0.1%)	6 (0.1%)	7 (0.0%)
Total		8,357	7,738	8,244

Co-op Applications Received by Type

Case Type	Application Description	2018-19	2017-18	2016-17
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	251 (45%)	247 (46%)	274 (47%)
C1/2	Combined C1 and C2 applications	118 (21%)	114 (21%)	102 (17.5%)
C2	Application to end the occupancy of the member unit and evict the member	107 (19%)	86 (16%)	93 (16%)

C3	Application to end the occupancy and evict the member - based on the member's consent or notice	6 (1%)	6 (1%)	3 (0.01%)
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	81 (14%)	89 (16%)	110 (18.9%)
Total		563	542	582

Call Centre

	2018-19	2017-18	2016-17
Calls handled	242,892	272,719	261,154
Average time per call	4:48	4:57	5:19
Average wait time in the queue	15:18	9:04	9:46

Service Standards

The LTB changed its service standards on December 31, 2017. Recognizing that the time to schedule, hear and issue an order is impacted by the complexity of the application, the LTB has shifted from a single service standard to two categories:

LTB Service Standards*

	2018-19	2017-18
L1 and L9 applications will be scheduled for a hearing within 25 business days	35% (31.8 days)	54% (26.1 days)
Decisions (Orders) for L1 and L9 applications will be issued within 4	70% (4.6 days)	78% (4 days)

business days at the conclusion of the final hearing		
All other LTB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days	37% (36.7 days)	53% (31.2 days)
Decisions (Orders) for all other LTB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing	79% (9.5 days)	82% (7.6 days)

Request for Reviews

A party can ask for a review of an LTB decision if they believe a “serious error” has been made in the LTB’s order.

	2018-2019
Total number of requests for review	3,595
Denied requests for review	844
Requests for review sent to hearing	2,751

Ontario Special Education Tribunals – English and French

The Ontario Special Education Tribunals (OSETs) hear appeals from parents who have been unable to resolve disputes with school boards with respect to the identification and placement of exceptional pupils.

The OSETs jurisdiction and authority are derived from the [Education Act](#).

Operational Highlights

In 2018-19, the OSETs began processing appeals electronically to ensure efficiency of service and to reduce costs.

Statistics

In 2018-19, the Ontario Special Education Tribunal (English) received four appeals. One settled through mediation/adjudication, one was closed because it was incomplete, one